

BC529122 BC529122

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-25

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Case Number: BC529122 Hearing Date: August 25, 2026 Dept: 510

No.

13 - Eric Zimmerman, et al. v. Ryan Johnson, et al.

Judgment

Creditor Eric Zimmerman's Motion for Sanctions

Judgment

creditor Eric Zimmerman moves for an order awarding discovery sanctions in the amount of \$59,236.79 against Judgment Debtor Ryan Johnson.

The

Court cannot award the relief sought. Under California Rules of Court rule 3.1110(a), "A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." (See also CCP § 1010.) "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (CCP § 2023.040.)

Here,

Zimmerman's notice of motion is deficient because it does not cite the statute under which he requests monetary sanctions. Without specifying the statutory basis, Johnson has not received adequate notice of the sanctions sought against him, in violation of due process. (See *In re Marriage of Reese & Guy* (1999) 73 Cal.App.4th 1214, 1220.)

Disposition

Judgment

Creditor Eric Zimmerman's motion for sanctions is denied without prejudice.